

during her lifetime, nor did she ever visit their house. After 13 years, in 2009, the Supreme Court transferred Devi's properties to her in-laws.

This is because the Hindu Succession Act (HSA), 1956, stipulates that if a woman's property is self-acquired, the husband is predeceased, and there are no children, the property will go to the husband's heirs and not to her parents, siblings, or other relatives.

This is just an example of the arcane laws that govern inheritance, which have been amended piecemeal over time but are still a minefield for women.

THE INHERITANCE CONUNDRUM

In India, when a woman dies intestate, the distribution of her property is handled per the personal laws applicable to her religious community.

One of the most significant reforms addressing gender disparities in inheritance laws came in 2005, when the HSA was amended to ensure equality between sons and daughters in terms of inheritance rights. The HSA applies to Hindus, Buddhists, Sikhs, and Jains.

But that amendment aside, there are still provisions that need to be updated. For instance, if a woman dies intestate, the property she acquired in her lifetime is passed over to her sons and daughters, or their children if they have died as well. If she doesn't have children, all her assets are transferred to her husband. Full ownership is transferred to the woman's mother-in-law if her husband has also passed away. A married woman's parents become her legal heirs only if all heirs on the husband's side are no more.

Despite institutional efforts to reduce gender dis-

crimination in inheritance, societal biases frequently impede their realisation. "Women's legal [inheritors] should also include their own parents in this era," says Vishnu Chundi, Founder and CEO of AasaanWill.

Chundi explains that in cases where a Hindu woman inherits property from a parent, that property will be transferred to her children if she dies intestate. If there are no children, it is transferred to the other heirs of her father or mother, depending on who she inherited the property from, and will not go to her husband's heirs. "As per Section 15 (2)(a), if the property is inherited from her parents, it devolves to the father's heirs in the absence of any kids. As per Section 15 (2)(b), if the property is inherited from her husband or father-in-law, it devolves to the husband's heirs in the absence of kids," says Chundi.

Now about those centuries-old mores, consider the inheritance rights of a woman if her husband dies and she marries someone else. "A widow gets an equal share of her husband's property and his other Class I heirs—his mother and children. In case the widow remarries, she is to give up her claim on her ex-husband's properties," says Chundi. Under what law, you ask? The Hindu Widow Remarriage Act of 1856.

OTHER LAWS

Under the Indian Succession Act (ISA), 1925, which applies to Christians, if a woman passes away without a will, her husband and children inherit the property. If any children do not survive, the husband will receive the entire share.

In Islamic law, the inheritance rights of women are clearly specified. Daughters have the right to inherit, but their share is generally half that of their brothers, predicated on the view that men are the family's primary breadwinners. For instance, in a family with one son, one daughter, and 12 assets that need to be devolved, the son will get eight assets and the daughter four.

Bhavya Sriram, Partner at JSA Advocates & Solicitors, says, "In general, there are four main sources of Muslim law: the Holy Quran; the Sunna, which is the practice of the Prophet; Ijma, the consensus of Islamic scholars; and Qiyas, an analogical deduction for applying the jurisprudential ruling of an issue to another analogous issue on which there is no ruling in religious texts. The Muslim law of succession for property is derived from the four sources mentioned along with Hadith (the sayings and actions of the Prophet Muhammad)."

But these laws apply to legal partners. A 2008 Supreme Court verdict shows what happens in long-term relationships that are not recognised by law.

A person called Sheetaldeen died in 1993, leaving be-

128 |



In India, when a woman dies intestate, the distribution of her property is per the personal laws of her religion